

NICHOLAS v LEMP

25CV48280

PLAINTIFF'S MOTION TO FILE FIRST AMENDED COMPLAINT TO ADD SHANE MIRANDA; PLAINTIFF'S MOTION FOR JUDGMENT ON THE PLEADINGS

These matters involve real property disputes between Danny E. Nicholas ("Plaintiff") and Lani Arellanes ("Arellanes") and Cathy Lemp ("Lemp.")

Now before the Court are two motions brought by Plaintiff: 1) Motion for Leave to File First Amended Complaint ("FAC") and 2) Motion for Judgment on the Pleadings ("MJOP.") The motions are unopposed.

I. Background Facts

In or around October 24, 2021, Plaintiff entered into an agreement with Lani Arellanes (now deceased) which appears to have been memorialized in a handwritten document prepared and signed by Arellanes ("Agreement") (Petition to Void TOD, Ex. 1.) Pursuant to this Agreement, Plaintiff would build a 3-bedroom home for Arellanes on her property located at 2608 Arrowhead Street ("Arrowhead Property.") Arellanes would provide all materials and tools. In exchange, Arellanes would give Plaintiff a \$53,000 1.1 acre property located at 2044 Yolo Court ("Yolo Property.")

The Agreement also stated:

Should I become disabled or deceased or unable to complete this project to "occupancy" all properties 2044 Yolo Court and 2608 Arrowhead Street will become the property of Danny E. Nicholas to complete his project at Yolo Court. Neither his children nor mine are entitled to either properties.

Apparently things went awry in this relationship. On May 19, 2023, Plaintiff filed a lawsuit against Arellanes (Case No. 23CV46746) ("Case One") for breach of contract, common counts and fraud. Plaintiff alleges essentially that Arellanes prevented him from returning to the Arrowhead Property, thereby preventing him from finishing the job,

and failed to pay him for any of the materials or loans he provided. He further alleges that she never transferred the interest in the Yolo Property. In Case One, Plaintiff seeks \$116,260 in damages and filed a lis pendens on the Arrowhead Property to prevent Arellanes from selling it.

On September 10, 2025, Plaintiff filed a lawsuit against Cathy Lemp (Calaveras County Case No. 25CV48280) (“Case Two”) to void a Transfer on Death deed (“TOD”). Specifically, Plaintiff sought to void the TOD which purported to transfer the Arrowhead Property from Arellanes to Lemp. The TOD appears to have been prepared by the law firm of JPink Law, was witnessed by Jay Pink, Esq. (“Pink”) and was recorded on May 31, 2022. Plaintiff has also filed a Petition to Determine Succession to Primary Residence pursuant to Probate Code sections 13151 and 13152 in Case Two. According to Plaintiff, Lemp has recently quitclaimed the TOD for the Arrowhead Property to non-party Shane Miranda (“Miranda.”)

The cases were consolidated.

II. Legal Standard and Discussion

A. Motion for Leave to File First Amended Complaint

Plaintiff seeks leave to file a First Amended Complaint (“FAC”) to add Shane Miranda as a party to this matter.³

The court may, in furtherance of justice, and on such terms as may be proper, allow a party to amend any pleading. (Code Civ. Proc. §§ 473 & 576.) Generally, leave to amend should be granted liberally. (*Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 488-489.)

A motion to amend a pleading before trial must include a copy of the proposed amendment or amended pleading. (Cal. Rules of Court, Rule 3.1324, subd. (a)(1).) The motion must also be supported by a declaration which specifies the following: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. (Cal. Rules of Court, Rule 3.1324, subd. (b).) Plaintiff’s motion complies with the Rules of Court.

³ Plaintiff routinely includes Shane Miranda in the caption of his pleadings in this case but Mr. Miranda has never been a party to this matter.

Plaintiff asserts that the amendment is necessary to substitute Shane Miranda for Doe 1 and to add factual allegations about Miranda's knowledge and involvement in the sale of the Property.

The **motion to amend is GRANTED**. Plaintiff must serve a summons and proof of service on Miranda before he will be obliged to answer as a named defendant in this matter.

B. Motion for Judgment on the Pleadings

The motion is for judgment on the pleadings is moot because the Court has granted leave to amend the Complaint.

The **motion for judgment on the pleadings is therefore DENIED, without prejudice**.

The clerk shall provide notice of this ruling to the parties forthwith. Plaintiff to submit a formal Order and Judgment complying with Rule 3.1312 in conformity with this Ruling.

JENNINGS v WOMBLE, et al

26CV48608

DEFENDANT'S MOTION TO STRIKE PORTIONS OF THE FIRST AMENDED COMPLAINT

Now before the Court is a motion to strike portions of Plaintiff Bethany Jennings' First Amended Complaint brought by Defendants Calaveras United School District and Sharon Womble ("Defendants.")

Defendants' motion does not comply with Local Rule 3.3.7. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3.3.7 Tentative Rulings (Repealed Eff 7/1/06, As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3.3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court [emphasis in original.]

Failure to include this language in the notice may be a basis for the Court to deny the motion.